



ISLAMIC UNIVERSITY OF TECHNOLOGY (IUT)
ORGANISATION OF ISLAMIC COOPERATION (OIC)
Department of Computer Science and Engineering (CSE)

SEMESTER FINAL EXAMINATION
DURATION: 3 HOURS

WINTER SEMESTER, 2023-2024
FULL MARKS: 150

Hum 4747: Legal Issues and Cyber Law

Do not write on the question paper. This is an open book exam, and you may use any spiral-bound books or printed materials. Mobile phones and touch devices are not allowed.

Answer all 5 (five) questions. Figures in the right margin indicate full marks of questions with corresponding COs and POs in parentheses.

1. In 2023, you founded "BanglaBooks", a digital platform offering Bengali literature, poetry, and academic resources to subscribers. Your platform features a unique collection of 500 classic Bengali poems, stories, and essays that you digitized from pre-1950 publications believed to be in the public domain. Additionally, you commissioned 200 original translations of international literary works into Bengali, paying translators a one-time fee without formal contracts specifying copyright ownership.

BanglaBooks quickly gained popularity among students, academics, and literature enthusiasts across Bangladesh. Six months after launch, you received a cease-and-desist letter from "Heritage Literary Trust", a prominent organization that claims to represent the estates of several Bengali authors whose works appear on your platform. They assert that while some works might appear old, the authors' deaths occurred less than 60 years ago, meaning their works remain under copyright protection in Bangladesh. Furthermore, "Global Literature Exchange", an international publishing house, has contacted you regarding 30 translations on your platform. They claim to hold exclusive Bengali translation rights for these works through agreements with the original foreign publishers. They argue that your commissioned translations constitute derivative works that infringe their exclusive rights.

Additionally, a group of your translators has formed a collective, claiming they retain copyright in their translations despite your payments, as there were no written agreements transferring copyright. They demand royalties for ongoing use of their work and proper attribution on the platform.

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| a) Analyze the copyright protection framework in Bangladesh under the Copyright Act, 2000 (as amended), explaining how copyright arises, what works are protected, the duration of protection for literary works, and the significance of copyright registration. | 10
(CO1)
(PO2) |
| b) Evaluate the copyright infringement claims against BanglaBooks from both Heritage Literary Trust and Global Literature Exchange, applying relevant provisions of Bangladesh's copyright law regarding public domain status, translation rights, and derivative works. | 10
(CO1)
(PO4) |
| c) Based on your analysis of Bangladesh's copyright law, develop a comprehensive strategy to address all three disputes (Heritage Literary Trust, Global Literature Exchange, and the translators' collective). Explain the legal reasoning behind your approach, potential remedies available, and how your strategy balances legal compliance with business continuity. | 3 × 8
(CO1)
(PO3) |
2. In 2020, Tesla filed a lawsuit against Rivian, alleging that Rivian had engaged in corporate espionage by hiring former Tesla employees and encouraging them to steal trade secrets related to EV battery technology. This case highlights the critical role of trade secrets in the rapidly evolving electric vehicle (EV) industry.

Analyze the legal strategies employed by Tesla to protect its trade secrets in the EV industry. Evaluate Rivian's defense against Tesla's allegations by considering Rivian's arguments that the lawsuit

is a competitive business tactic and how the company's internal policies and disciplinary actions might impact the case's outcome.

3. In 2021, Frances Haugen, a former Facebook product manager, leaked internal documents revealing systemic issues in the company's operations. The disclosures highlighted how Facebook prioritized engagement and profit over user safety, leading to algorithmic amplification of harmful content, mental health risks for teenagers, and inadequate moderation of non-English language posts.
 - a) Analyze the ethical dilemmas Facebook faced by evaluating the tension between its engagement-driven algorithms and public health objectives. Examine the factors contributing to the company's failure to address content moderation gaps in non-English contexts and assess how these gaps reflect its corporate priorities. 13 (CO2) (PO2)
 - b) Design three policy interventions for social media platforms to mitigate the systemic issues Haugen exposed. Justify how each intervention would: (1) Reduce algorithmic amplification of harmful content (2) Enhance transparency through independent audits of internal research (3) Safeguard whistleblowers who expose unethical practices 3 x 6 (CO2) (PO3)
4. Jurisdictional disputes often arise in cases involving global technology platforms and cross-border cybercrimes. Two notable examples include Google v. Equustek (2017), where the Supreme Court of Canada ordered Google to de-index a distributor's website globally despite Google's opposition on jurisdictional grounds, and United States v. Aleksey Vladimirovich Ivanov, where the U.S. prosecuted a Russian hacker who committed crimes remotely without ever setting foot in the United States.
 - a) Using the case of Google v. Equustek, critically evaluate how courts can assert extraterritorial jurisdiction over global technology companies. Discuss the implications of such orders for international comity and freedom of expression, as highlighted in Google's objections to the Canadian court's ruling. 10 (CO2) (PO1)
 - b) Drawing from United States v. Aleksey Vladimirovich Ivanov, analyze how jurisdiction is established in cases involving cross-border cybercrimes. Explain how the FBI's tactics to lure Ivanov into U.S. territory impacted the legal proceedings and assess whether such methods align with principles of international law enforcement cooperation. 15 (CO2) (PO1)
5. In a fictional scenario set in Bangladesh, a journalist named Arif Hossain is recognized for his investigative work on political corruption. He publishes an article online criticizing government policies and is subsequently charged under the Digital Security Act (DSA) for "spreading propaganda against the government" and "damaging the image of the state." Arif asserts his reporting is factual and in the public interest, yet he faces immediate arrest and confiscation of his digital devices, highlighting potential concerns about the misuse of the DSA in stifling press freedom and dissent.
 - a) How does the Digital Security Act (DSA) affect press and speech freedom in Arif Hossain's case, considering the provisions of the DSA that could be interpreted to infringe upon his rights and the legal procedures required during his arrest and confiscation of digital devices? Identify and cite the relevant sections of the DSA in this context. 15 (CO2) (PO2)
 - b) Discuss the balance between national security and freedom of expression by evaluating how the misuse of laws like the DSA can be prevented in situations like Arif's while still addressing legitimate national security concerns. 15 (CO2) (PO1)